

STAFF HEALTH

The School Board recognizes its obligation to provide a safe and healthy environment for students and staff members. It is the intent of the School Board to follow the recommendations of the Loudoun County Health Department, and the Virginia Department of Health in collaboration with other health care professionals and organizations.

A. Tuberculosis Test. As a condition of employment, every new employee shall submit a certificate, signed by a licensed healthcare professional, stating that such employee appears free of communicable tuberculosis. Such certificate shall be based upon recorded results of skin tests, x-rays, screenings, or other examinations deemed necessary by a licensed healthcare professional that has been performed within the three-month period immediately preceding submission of the certificate.

After consulting with the local health department director, the School Board may require the submission of such certificates at such intervals it deems appropriate, as a condition of continued employment.

B. Blood Borne Contagious or Communicable Diseases. The attendance at school or work of employees who suffer from blood-borne diseases which are communicable or contagious, such as HIV, AIDS, and Hepatitis-B, and which may be transmitted by the exchange of body secretions, shall be determined on a case-by-case basis through implementation of the process delineated in administrative regulation 7320 contained in this policy manual. The privacy rights of the employee involved shall be respected. The number of personnel who are made aware of the employee's condition shall be minimized but shall not jeopardize the safety of the employee and other persons within the school or work environment.

C. Other Contagious or Infectious Diseases. Any employee who is suspected of having a contagious or communicable disease, other than those covered in paragraph B, shall be examined by a school nurse or public health nurse to confirm the presence or absence of symptoms of the disease. The employee may provide such documentation from his/her personal physician at the employee's expense. If a nurse is unavailable, the principal or supervisor shall contact the Supervisor of Student Health Services who will determine whether the employee should be excluded from the school or work environment due to exhibited symptoms. In all cases, the affected individual should be isolated from other persons within the school or work environment until a decision can be made regarding the presence or absence of the disease.

Medical diagnosis or treatment by a licensed physician or the Loudoun County Health Department shall be encouraged. The Loudoun County Health Department should be informed of diseases not previously reported or which require the assistance of that department.

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D. Enhanced Health Screening. During an epidemic, pandemic or period of increased public health risk, and in compliance with recommendations from the Loudoun County Health Department, the U.S. Centers for Disease Control, or the Commonwealth of Virginia employees may be required to submit to enhanced health screening protocols for the legitimate business need to maintain a safe learning and working environment. As these medically relate to an epidemic, pandemic, or increased public health risk, these protocols may include, but are not limited to:

1. Providing details related to symptoms when calling in sick;
2. Checking their own body temperature before reporting to work on a frequency recommended by public health officials and as directed by LCPS;
3. Submitting to body temperature checks upon returning to work on a frequency recommended by public health officials and as directed by LCPS;
4. Responding to a health and symptom questionnaire;
5. Complying with a stay-at-home order issued by the Superintendent or public health officials when sick or experiencing symptoms and providing a note from a health care provider before returning to work; and
6. Submitting to a virus, antibody, or other screening tests before entering the workplace.

E. Mitigation Protocols. During an epidemic, pandemic or period of increased public health risk, and in compliance with recommendations from the Loudoun County Health Department, the U.S. Centers for Disease Control, or the Commonwealth of Virginia employees may be required to submit to enhanced contagion spread mitigation protocols. These protocols may include, but are not limited to:

1. Complying with physical/social distancing;
2. Wearing a face mask, covering, or other required personal protective gear (PPE) while in the workplace;
3. Working from home during regular work hours;
4. Frequent hand washing; and
5. Frequent sanitation of Division property and equipment.

F. High-Risk Employees. During an epidemic, pandemic or period of increased public health risk, high-risk employees as defined by the Loudoun County Health Department, The U.S. Centers for Disease Control, the Commonwealth of Virginia, or

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the employee's health care provider may request the use of sick leave, annual leave, personal reasons leave or a combination of leave as provided by School Board Policy, the Family and Medical Leave Act, and the Americans with Disabilities Act (ADA) but will not be required to do so. If they meet the "direct threat" requirement under ADA regulations, they may be excluded from the workplace. Under 29 C.F.R. Section 1630.2(r), a "direct threat" means a significant risk of substantial harm to the health or safety of the individual or others that cannot be eliminated or reduced by reasonable accommodation. The determination that an individual poses a "direct threat" shall be based on an individualized assessment of the individual's present ability to safely perform the essential functions of the job. This assessment shall be based on a reasonable medical judgment that relies on the most current medical knowledge and/or on the best available objective evidence. In determining whether an individual would pose a direct threat, the factors to be considered include:

1. The duration of the risk;
2. The nature and severity of the potential harm;
3. The likelihood that the potential harm will occur; and
4. The imminence of the potential harm.

The employee may return to school or work at such time as the employee's condition does not jeopardize the health and safety of other employees and students. A statement may be required from a physician or the Loudoun County Health Department certifying that the employee's condition does not jeopardize the health and safety of, other employees, and students.

[Former Policies 7-13 and 7-26]

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Legal Refs.: Code of Virginia, 1950, as amended, §§ [22.1-78](#), [22.1-300](#), [22.1-301](#), [32.1-45.1](#), [54.1-2952.2](#), [54.1-2957.02](#).